

23NWCV02771 23NWCV02771

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 23NWCV02771 Hearing Date: August 25, 2026 Dept: P

AMERICAN EXPRESS

NATIONAL BANK v. ASHLEY LEON, ET AL.

CASE NO.: 23NWCV02771

HEARING: 08/25/2026 @ 9:30 AM

#9

TENTATIVE ORDER

I.

Plaintiff American Express National

Bank's motion to enforce settlement is GRANTED.

II.

Plaintiff's request for \$29,969.37

(principal in the amount of \$28,810.32 and costs in the amount of \$1,159.05) is

GRANTED.

Moving party to give notice.

Plaintiff American Express National Bank (Plaintiff) moves

enforce a settlement agreement and enter judgment in favor of it and against

Defendant Ashley Leon (Leon).

Background

On August 9, 2023, Plaintiff filed this collections action against Defendants Ashley Leon and Rio Luna Inc (Defendants). The complaint alleges that on April 16, 2021, Plaintiff provided Defendants with a credit account and Defendants used the account “to make purchases and/or take cash advances and/or make balance transfers, each time reaffirming Defendants’ agreement to repay Plaintiff for the amount of the purchase and/or cash advances and/or balance transfers.” (Complaint, ¶ 3.) The complaint alleges Defendants failed to make payments on the account as agreed. (Complaint, ¶ 4.) The complaint asserts two causes of action: (1) account stated and (2) open book account.

On October 30, 2023, Plaintiff filed an Application to Retain Jurisdiction under C.C.P. § 664.4 and Dismiss. On November 2, 2023, the Court dismissed this action and retained jurisdiction under Code of Civil Procedure section 664.6.

Legal Standard

Code of Civil Procedure section 664.6, subdivision (a) provides: “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.”

Discussion

Plaintiff moves to enforce a written settlement agreement (Settlement Agreement) entered into between it and Leon on the grounds that Leon has defaulted on the Settlement Agreement by failing to make the agreed payments. This motion is unopposed.

Plaintiff includes a copy of the signed Settlement Agreement. (Schlick Decl., ¶ 4, Exh. 1.) Under the terms of the Settlement Agreement, Leon agreed to pay Plaintiff \$50,131.33 (Settlement Amount) “by paying the minimum sum of \$1,514.36 on or before September 22, 2023 and, thereafter, by paying the minimum sum of \$1,514.36 on or before the 22nd day of each consecutive month until the Settlement Amount is fully paid.” (Schlick Decl., Exh. 1, Settlement Agreement, ¶ 1.) As of the date of Plaintiff’s Counsel’s

declaration, April 28, 2026, "Defendant should have paid \$48,459.52; however, Plaintiff has received only \$21,431.21." (Penuela Decl., ¶ 5.) Therefore, Plaintiff establishes that Leon has defaulted on the Settlement Agreement.

Plaintiff also requests costs associated with this motion.

The Settlement Agreement provides: "If payments are not received in the amounts and by the dates set forth in this Settlement Agreement...then Plaintiff may immediately file a noticed motion, together with a declaration regarding such non-payment under this Settlement Agreement, for entry of judgment for the Account Balance...less credit for any payment received under this Settlement Agreement, plus court costs associated with filing and serving this action and any application or motion to obtain judgment as provided by this Settlement Agreement." (Schlick Decl., Exh. 1, Settlement Agreement, ¶ 5.) Therefore, the Settlement Agreement provides for an award of costs.

Plaintiff requests \$29,969.37 reflecting \$28,810.32 for the remaining balance owed and \$1,159.05 in costs. The costs consist of "\$443.95 (\$435.00 for filing complaint & \$8.95 e-filing fee) + \$220.10 (\$197.00 for service of process & \$23.10 e-filing fee) + \$60.00 (fee for filing this motion) + \$435.00 (defendant's first appearance fee)." (Schlick Decl., ¶ 7.) Pursuant to the Settlement Agreement, the Court awards \$1,159.05 in costs.

Accordingly, Plaintiff's motion to enforce settlement is GRANTED.

The Court GRANTS Plaintiff's request for judgment in the amount of \$29,969.37 (principal in the amount of \$28,810.32 and costs in the amount of \$1,159.05)